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JUSTIFICATION FOR AN EXCEPTION TO FAIR OPPORTUNITY UNDER INDEFINITE DELIVERY/INDEFINITE QUANTITY (IDIQ) CONTRACTS

Solicitation 47QFWA-20-F-0011

Cyber Security & Information Assurance (CSIA) Support Services (MEGATRON)

in support of:

United States Army Combat Capabilities Development Command (CCDC), Command, Control, Computers, Communications, Cyber, Intelligence, Surveillance, and Reconnaissance (C5ISR) Center

**United States (U.S.) General Services Administration (GSA)
Federal Acquisition Service
Assisted Acquisition Services (AAS) Army**

Interagency Agreement Number 47QFWA-20-F0011

Controlled by AAS Contracting Officer: Nina DiPlacido, *nina.diplacido@gsa.gov*

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The General Services Administration (GSA) Assisted Acquisition Services (AAS) makes this Justification for the issuance of an Exception to Fair Opportunity order pursuant to Federal Acquisition Regulation (FAR) 16.5.

a. Identification of Agency and Contracting Activity:

Agency:

GSA AAS acting in support of U.S. Army Combat Capabilities Development Command

Contracting Activity:

GSA AAS Contracting Office (QFACBB)

1800 F Street, NW

Washington, D.C. 20405

b. Nature and/or Description of Action Being Approved:

The Government intends to issue a modification to extend GSA Contract number 47QTCK-18-D-0009/Task Order (TO) number 47QFWA-20-F0011 with CACI, Inc. for 12 months to continue the Cybersecurity Engineering Support for the United States Army Combat Capabilities Development Command (CCDC) Command, Control, Computers, Communications, Cyber, Intelligence, Surveillance, and Reconnaissance (C5ISR) Center from April 6, 2025 to April 5, 2026. The TO is a Cost Plus Fixed Fee (CPFF) TO that was competitively awarded under GSA Alliant 2 Governmentwide Acquisition Contract (GWAC) utilizing FAR 16.505 ordering procedures on April 7, 2020 with a twelve (12) month base period and four (4) twelve (12) month options. This TO is set to expire April 6, 2025 if no action is taken.

This extension is required to prevent a lapse of this critical service while providing the Government the necessary time to award the follow-on competitive TO. It is anticipated that the recompetes will be awarded prior to the end of the modified period of performance of this task order.

c. Description of Supplies/Services and Estimated Value:

The CCDC C5ISR Center develops and integrates C5ISR and cybersecurity engineering solutions and technologies that enable information security dominance and decisive lethality for the Warfighters (DOD and Coalition Partners). The C5ISR Center provides cyber hardened secure communications and networking technologies through innovative research and development (R&D) efforts to include prototyping, developing, testing, and integrating disparate networks and capabilities. Under the scope of this MEGATRON requirement and in support of the CCDC C5ISR Center, the contractor provides the requisite C5ISR System Engineering and Technical Assistance (SETA) support, including the R&D, engineering, integration, testing, training, logistics, program/project management, laboratory integration, field engineering, acquisition, and operations support expertise to effectively perform the work described in the Performance Work Statement (PWS) and support the CCDC C5ISR Center in effectively carrying out its

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critical mission. The total twelve (12) month estimate of the modification extension is [REDACTED] which is estimated to increase the potential TO ceiling by approximately [REDACTED] from \$ [REDACTED] by \$ [REDACTED] to [REDACTED]

d. Identification of the Exception to Fair Opportunity and Rationale:

This Task Order (TO) Justification is being prepared as required by FAR 16.505(b), Exception to Fair Opportunity Process.

In accordance with FAR 16.505(b)(2)(i)(B), only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

The MEGATRON TO is due to expire on April 6, 2025. It is impossible to recompetite the current requirement in the given time frame and avoid a lapse in the critical services required by the CCDC C5ISR Center. Only the current incumbent, CACI, Inc., is capable of providing the complex cybersecurity and communications security services required at the standards required due to their complexity and specialization, in the timeframe needed. Failure to maintain continuity of technical support for the essential Cybersecurity efforts would substantially decrease the Army's ability to defend critical DoD C5ISR infrastructure, threaten its ability to ensure information dominance and safeguard national security against evolving threats. The follow-on acquisition was on schedule to be awarded prior to the expiration of the current task order; however, the technical requirements for the competitive follow-on action were recently modified to be compliant with the U.S. Army Chief Information Officer's most recent change in direction, the updated Army strategy, and the need to mitigate new national security risks. The following details the factors that initiated the modifications to the requirements:

Army Unified Network Plan: In October 2024, the Army amended its strategy to merge its tactical and enterprise networks into one unified network by 2027. The Army's unified network will allow the Army to operate as a single entity across all operational domains, including land, sea, space, air, and cyber. The unified network will also improve situational awareness, strengthen cyber defense, and simplify experience and usability in the field. This shift will result in additional capabilities and equipment needed to meet demands of these new mission areas that are required to be incorporated into the planned follow-on competitive requirement.

Response to Evolving & Emerging Threats: The Army is changing focus from low intensity conflicts in Iraq and Afghanistan to the Great Power Competition (GPC) with China, Russia and Iran. These foreign adversaries constantly probe for and exploit vulnerabilities in the nation's DoD networks seeking to interrupt critical national defense networks. These adversaries use a combination of approaches to access, deny, degrade, disrupt, and manipulate our nation's most critical information and networks, emphasizing the importance of remaining on the cutting edge of next generation technologies and capabilities. As a result, several certification and assessment processes were updated to counteract these new vulnerabilities and threat assessments.

Army 2030 Initiative: A cornerstone of the Army's vision for 2030 is to develop and

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operate in multiple domains to include the addition of Space and Airborne solutions. To meet this new demand, the Army must deploy new commercial, military, and scientific space platforms that conceal and protect friendly ground forces across the entire battlespace. Requirements must be incorporated into the MEGATRON TO now to ensure these new technologies and capabilities are assessed and compliant with various technical standards, and operational requirements. The new directives required the CCDC to redefine its requirements, and thus required changes to the acquisition strategy, and moved the timeline to the right to properly incorporate, vet, conduct market research, solicit and award a competitive recompete action inclusive of the Army's updated requirements.

Any interruptions or break in service in providing these services for CCDC under the current task order until a new competitive task order can be awarded for MEGATRON is unacceptable because it would severely impact CCDC's ability to successfully meet its mission, which would result in unnecessary risk to the US Army's missions and cybersecurity efforts. Negative impacts to the communications infrastructure that support mission critical needs for the US Army are unacceptable. The failure to keep this support in place would have severe consequences. For example, China continually attempts to infiltrate the US Army's network daily. Failing to implement these new cybersecurity updates, which address newly identified vulnerabilities, could result in hostile countries obtaining access to sensitive, operational and classified data on the Army's secure networks. A breach such as this would endanger our warfighters, homeland, and missions worldwide for an unknown length of time that it would take to identify the breach and isolate the affected network software and hardware, contain and eliminate the vulnerabilities and clean up the networks. In addition to the severe consequences, a breach could cost hundreds of thousands of dollars in man-hours and finite resources which would be used to deal with the aftermath of an attack on the Army's network.

CACI is currently supporting the CCDC C5ISR Center and has provided excellent support for this task order since April 2020. CACI is the only source capable of providing this support within the timeframe because they possess the in-depth knowledge, skills, and technical expertise to continue supporting a substantial amount of concurrent, complex requirements without interruption. The U.S. Army depends on its communications infrastructure from which it commands and controls worldwide military defensive and offensive capabilities. The CCDC C5ISR Center has a responsibility to focus resources and efforts on the initiatives within the MEGATRON task order that will enhance cybersecurity reliability, resilience, and efficiency. No other contractor could acquire sufficient knowledge and capability to allow them to support the twelve (12)-month timeline between the current task order expiration and the anticipated award date of the new competitive task order. CACI is uniquely positioned to rapidly respond to cybersecurity requirements. Providing fair opportunity for the services would result in unacceptable delays and a lapse in support services which would significantly impact project schedules, mission essential services, and costs; and thus, negatively impact the CCDC C5ISR Center as a provider of cybersecurity solutions to Army program customers that include, but are not limited to: [REDACTED] ([REDACTED]

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The Government would incur substantial degradation of mission-critical and national security capabilities if these amended requirements are not incorporated into the requirement and continuity of service is not preserved while a competitive recompile action is accomplished.

The Government considered awarding a twelve (12) month bridge contract to CACI, the incumbent. However, this would cost the Government and the contractor tens of thousands of dollars in labor hours and resources and cause an unacceptable lapse in services due to the fact that contractor personnel would need to stop work, spend hours turning in and receiving new Common Access Cards, renewing their access badges to Secure Compartmented Information Facility (SCIF) and secure networks. The Government would have to perform many administrative actions to support the new contract action. For these reasons, the Government finds this lapse in services and additional and unnecessary costs incurred to be unacceptable. An extension to the current contract is the most appropriate solution.

The Government considered utilizing a six (6) month extension in accordance with FAR 52.217-8. However, it was determined that six months was not enough time for a competitive recompile. In addition, an Exception to Fair Opportunity would still be needed which would cause a duplication of work if additional time was needed past the six-month extension. The twelve-month extension will also give the ability to help the client with future acquisition changes.

e. Determination That the Anticipated Cost is Fair and Reasonable:

The Government has determined that it is impracticable to secure services of the kind and quality required without the use of a Cost-Plus Fixed Fee type TO. It is not possible to estimate accurately the extent or duration of the work, or to anticipate costs with any reasonable degree of accuracy due to the nature of the tasks. The tasks vary each month and therefore, it is impossible to predict the exact hours that will be needed. It is imperative that the Government have the flexibility to adjust to meet mission needs. The Government realizes that although the risk of performance is higher in a non-fixed-price contract type, there will be adequate controls in place such as a not-to-exceed ceiling price, and overall contractor performance monitoring and surveillance methods to assure quality and control costs. Based upon the nature of this requirement and the presence of the above-mentioned risk mitigation controls, such contract type is justified for this TO extension.

The assigned GSA Project Manager (PM) will complete an evaluation of the contractor's

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price submission to ensure the labor mix and hours are appropriate for the work to be performed. In accordance with FAR 15.404-1(c) a cost analysis will be performed including the verification of rates as well as a comparison to prices paid under the current TO to determine if the cost is fair and reasonable to the Government. It is anticipated that the rates proposed for the TO extension will reflect either a close similarity or the same rates as currently being paid to CACI under the existing TO.

f. Other Facts Supporting the Justification:

No Other Facts.

g. Statement of Actions:

The Government will only solicit CACI for the current TO extension under this GSA Alliant 2 Contract, to extend the existing TO for twelve (12) months. No other firm can provide the essential services at the requisite level of expertise within the timeframe required. The Government is actively working on the subsequent TO recompet, which is currently in the Pre-solicitation phase. GSA anticipates a fully competitive award to be in place upon expiration of the current TO's twelve (12) month extension. For the re-compete, multiple Requests for Information (RFI) will be posted to the acquisition community to ensure a competitive acquisition. The RFI will involve soliciting feedback from industry to eliminate any barriers that will hinder competition. GSA will ensure that offers are solicited from as many potential sources as is practicable.

h. Certification by Technical or Requirements Personnel:

I hereby certify that the supporting data for the Exception to Fair Opportunity is accurate and complete.

DocuSigned by:
[Redacted Signature]

3/3/2025

Date

Project Manager, AAS Army
Assisted Acquisition Service

i. Signature of Authorized Officials:

I hereby certify that the Justification is accurate and complete to the best of my knowledge and belief, and I determine on the basis of the findings above that the exception to fair opportunity is in accordance with the requirements and is in the best interest of the Government.

DocuSigned by:
[Redacted Signature]

3/3/2025

Date

Contracting Officer, AAS Army